

2. 9:00 AM CASE NUMBER: C24-02873
CASE NAME: JUDITH SEELYE VS. TAMPICO HEALTHCARE CENTER, LLC
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See Line 11

3. 8:31 AM CASE NUMBER: C24-03111
CASE NAME: VICKI SOLLS DAVIS VS. ANN CHAMBERS
*FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL HEARING ON MOTION IN RE:
INTERLOCUTORY JUDGMENT OF PARTITION BY SALE
FILED BY:
TENTATIVE RULING:

See lime 12

4. 9:00 AM CASE NUMBER: C25-03310
CASE NAME: BLANE PHILLIPS VS. MATTHEW DAVIS
*CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See Line 14

5. 9:00 AM CASE NUMBER: C25-03424
CASE NAME: PAUL RHONE, JR. VS. CHEVRON U.S.A. INC
*CASE MANAGEMENT CONFERENCE TO TRAIL MOTION TO STRIKE & HEARING ON DEMURRER
FILED BY:
TENTATIVE RULING:

See lines 15 & 16

6. 9:00 AM CASE NUMBER: C25-03518
CASE NAME: AGUSTIN ARGENAL VS. KIA AMERICA, INC.
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

See line 18

Law & Motion

7. 9:00 AM CASE NUMBER: C22-00742
CASE NAME: PHILIP FERREIRA VS. WILLIAM MYERS
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: FERREIRA, PHILIP
TENTATIVE RULING:

Before the Court is a motion for leave to amend and supplement complaint filed by plaintiffs Phillip Ferreira and Crystal Ferreira. For the reasons set forth, the motion is **granted**, as set forth below.

Background

This action began as a property dispute between adjoining landowners (plaintiffs the Ferreriras and defendants the Myers) over the construction of a fence by the Myers that the Ferreriras allege encroaches on their property, as well as other related claims. (Compl. filed 4/4/2022.) In July 2022, the Myers filed a cross-complaint against the Ferreriras alleging that the Ferreriras trespassed on their property and disparaged their title. The Myers also allege that the Ferreriras have improperly graded their property or failed to install or maintain erosion control measures, allowing stormwater runoff to cause flooding, erosion and other damages to the Myers' property. (Myers X-Compl. filed 7/14/2022.)

In July 2024, with leave of court, the Ferreriras filed a cross-complaint against another property owner, cross-defendant Minou Barabi. The Ferreriras' first amended cross-complaint ("Ferreira FACC") filed in September 2024 alleges claims for equitable indemnity, contribution, and declaratory relief against Barabi, seeking indemnity or contribution for any liability the Ferreriras may have to the Myers resulting from the Myers' claims of erosion and related property damage alleged in the Myers cross-complaint. (Ferreira FACC filed 9/26/2024.) The Ferreira FACC alleges that stormwater runoff from Barabi's property passed over the Ferreriras' property and onto the Myers' property, causing or contributing to the damage to the Myers' property. (Ferreira FACC ¶¶ 17-22.)

In March 2025, Barabi filed a cross-complaint against the Ferreriras and Bryan Walter Fuery and Rhonda Fuery ("Barabi X-Compl."). The Barabi cross-complaint alleges claims for breach of contract and negligence as well as indemnity and contribution. The Barabi cross-complaint is based in part on the CC&Rs for the Montair community in Danville, to which Barabi alleges she and the Barabi cross-defendants are parties and which impose duties regarding landscape maintenance and drainage facilities, and the Town of Danville Municipal Code provision for grading permits. (Barabi X-Compl. ¶¶ 13-15.) Answers by the cross-defendants named in the Barabi cross-complaint were filed at the end of April 2025.

Legal Standards

A. Leave to Amend

The Court has broad discretion to grant leave to amend a pleading at any stage in a case. (*See* Code Civ. Proc. § 576.) (*See also* Code Civ. Proc. § 473(a).) California has a liberal policy of allowing amendments to pleadings; it is a rare case when leave to amend should be denied, particularly when there is no showing of prejudice to the other side. (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158; *Hong Sang Market, Inc. v. Peng* (2018) 20 Cal.App.5th 474, 488.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert

a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. [Citations omitted.]" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) *Fair v. Bakhtiari* (2011) 195 Cal.App.4th 1135, 1147 and *Thompson Pacific Construction, Inc. v. City of Sunnyvale* (2007) 155 Cal.App.4th 525, 544-545 [court may be found to have abused its discretion in denying leave if no prejudice is shown].)

B. Leave to Supplement Complaint

A party may also move to supplement a complaint to allege matters arising after the complaint was filed. (Code Civ. Proc. § 464(a).) "[T]he right to file a supplemental complaint can be exercised only with reference to matters which may be consistent with and in aid of the case made by the original complaint, and it is not allowable to substitute a new and independent cause of action by way of a supplemental complaint. . . . It is no objection to a supplemental complaint that different or additional relief is asked for. [Citation omitted.] Indeed, the object of the supplemental complaint is to obtain additional or different relief without resort to a new trial." (*Jacob v. Lorenz* (1893) 98 Cal. 332, 337-338.) Whether to grant leave to supplement is in the Court's discretion based on a showing that the "ends of justice" will be served. (*Plummer v. Superior Court* (1963) 212 Cal.App.2d 841, 843-844.)

C. Leave to File Late Cross-Claim

The Myers and Barabi argue the claims made against them in the proposed FAC should have been asserted by Plaintiffs in a cross-complaint when they answered their cross-complaints in August 2022 (Myers) and April 2025 (Barabi). Cross-claims arising from the same transaction or events existing at the time an answer is filed are compulsory and must be filed with the answer. (See, e.g., Code Civ. Proc. §§ 426.10(c) [defining "related cause of action"], 426.30(a) [cause of action party has "at the time of serving his answer"], and 426.50; *Silver Organizations, Ltd. v. Frank* (1990) 217 Cal. App. 3d 94, 97 [reversing denial of motion for leave to file compulsory cross-complaint].) Failure to assert a compulsory cross-claim can result in forfeiture of the claim. (Code Civ. Proc. § 426.30(a).)

A party who fails to plead a compulsory cross-claim may seek leave to file a cross-complaint to assert the claim "at any time during the course of the action." (Code Civ. Proc. § 426.50.) Inadvertence, mistake, neglect, or other cause does not preclude the Court from granting leave to file the cross-complaint. (Code Civ. Proc. § 426.50.) So long as the party acted in good faith, the Court "shall grant, upon such terms as may be just to the parties" leave to file the cross-complaint. (*Id.* [emphasis added].) The statute's provisions must be "liberally construed to avoid forfeiture of causes of action." (*Id.*)

Analysis

Plaintiffs ask for leave to file a "first amended and supplemented complaint" ("FAC" for convenience) which amends the existing claims and supplements the claims based on events they assert arose post-April 2022, and also after they answered the Myers cross-complaint. (See Deese Decl. Exh. 1; Reply p. 7.) The Myers and Barabi have opposed the motion; the Fuerys have not.

A. The Proposed FAC

The FAC adds Plaintiffs in their capacities as trustees of their family trust and the Myers in their capacities as trustees of their family trust. It adds as defendants Barabi and the Fuerys, who are

already parties to the action, as well as the Montair Property Owners Association ("HOA"). The FAC alleges various provisions of the CC&Rs (FAC ¶¶ 19-24, 33-39) on which the new claims in the FAC are in part based. It adds (a) a fourth cause of action for breach of the CC&Rs against the Myers and Barabi; (b) a fifth cause of action for private nuisance against the Myers and Barabi; (c) a sixth cause of action for negligence against the Myers and Barabi; (d) a seventh cause of action against Barabi for declaratory relief; and (e) an eighth cause of action against all defendants (the Myers, Barabi, the Fuerys, and the HOA) for declaratory relief. The new fourth through sixth causes of action are founded on facts regarding flooding after rains, drainage, and stormwater runoff, disputes that have been at issue in the case through the Myers and Barabi cross-complaints; opposing parties do not contend otherwise. The Court agrees that the proposed FAC cannot be characterized as merely restating Plaintiffs' claims pled in the original complaint; the FAC materially modifies and expands the claims from the original complaint, though, as set forth below, the additional facts and issues have been raised in other subsequent operative pleadings and answers.

B. Sufficient Compliance with Rule 3.1324

The Court finds the motion, the Deese Declaration, and the reply taken together demonstrate sufficient compliance with Rule 3.1324 of the California Rules of Court to make the showing required for motions for leave to amend. (Cal. R. Ct., Rule 3.1324(a)(2), (a)(3), (b)(1)-(b)(4).) To the extent the Myers contend that the Deese Declaration had to provide more extensive details regarding specific facts discovered and the timing of their discovery, a fair reading of the declaration is the relevant facts were discovered in 2024, confirmed in the reply referring to the results of expert investigation in February 2024. (Deese Decl. ¶¶ 9, 10; Reply p. 11, l. 21.) Additional elaboration by a supplemental declaration with a continuance or denial of the motion without prejudice is not warranted or would not be in the interests of justice or the parties in this case. (*Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.)

C. Lack of Good Faith and Excuse for Delay

"[W]hat constitutes 'good faith'-or lack of it-under Code of Civil Procedure section 426.50 must be determined in light of and in conformity with the liberality conferred upon the trial courts by the section" (*Foot's Transfer & Storage Co. v. Superior Court* (1980) 114 Cal.App.3d 897, 902.) The principal of liberality under the statute "requires that a strong showing of bad faith be made in order to support a denial of the right to file a cross-complaint" (*Id.*)

The Myers contend that the Deese Declaration is inadequate because it does not explain why it took until February 2026 for Plaintiffs to move to amend and supplement if they discovered the facts on which the amendments and supplementation are based two years earlier in 2024. They suggest some lack of good faith or tactical decision accounts for the delay. (*See Silver Organizations, supra*, 217 Cal.App.3d at 100 [explaining bad faith implies, among other things, a failure or refusal to fulfill a duty not as a result of an honest mistake, bad judgment or negligence, but by a sinister motive or based on a design or intent to mislead or deceive].) Bad faith can mean an action or tactic made with improper motive. (*County of Los Angeles v. Quinn Emanuel Urquhart & Sullivan LLP* (2025) 115 Cal.App.5th 489, 512 [bad faith found where the defendant deliberately waited for over a year to seek to file the cross-complaint "until after the merits of the underlying conduct were decided against Quinn."].)

The operative pleadings reflect an evolving and expanding set of claims as new parties were added,

discovery was conducted, and new theories were asserted by cross-complainants. Evaluating the operative complaint and cross-complaints, the Deese Declaration, including the admission that Plaintiffs became aware of facts pertinent to the amendment/supplement in 2024, and Plaintiffs' reply to the oppositions, which indicates the flooding issues which they seek to allege in supplemental allegations in the proposed FAC arose in and after September 2022 (Reply. 9. 7. L. 22 – p. 8. L. 2), the Court acknowledges there was delay by Plaintiffs in amending and supplementing their claims. There may have been neglect or mistake in Plaintiffs not filing a cross-complaint in August 2022 with their answer to the Myers cross-complaint, not filing a cross-complaint in April 2025 with their answer to the Barabi cross-complaint, and not making the motion to amend and supplement the complaint sooner after the September 2022 flooding and after the February 2024 expert analysis.

Nevertheless, the record does not support a finding that the delay was deliberate, tactical, made with ill motive or in bad faith. The Court notes that new counsel for Plaintiffs first appeared in the case at the end of June 2025, after the answers to the Myers and Barabi cross-complaints had been filed. Within seven months, Plaintiffs filed this motion. Delay alone is generally not a ground for denying leave to amend in any event. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565 [reversing judgment on the pleadings for defendant after plaintiff's motion to amend made on the day of trial was denied].)

D. Prejudice

The oppositions generally assert prejudice based on the expansion of the claims and delay. They do not show how they would be prejudiced given the delay in the trial date and lack of deadlines impacting their designation of expert witnesses and conduct of discovery. Under the circumstances, the fact that additional experts or more discovery may be required is not sufficient to show prejudice precluding granting the motion.

Even accepting that issues of "drainage, grading, stormwater, erosion, Town of Danville, [the HOA], and CC&Rs" were raised in the Myers cross-complaint (Myers Opp. p. 10, ll. 14-16), that the FAC materially expand Plaintiffs' claims and remedies in dispute (Myers Opp. pp. 10-11), and that the Ferreira FACC against Barabi filed in September 2024 alleges claims against Barabi founded factually at least in part on drainage and stormwater runoff issues (Ferreira X-Compl. ¶¶ 13-22), under the circumstances and based on the record on this motion, the Court does not find the delay is prejudicial. Those facts indicate that issues regarding flooding, drainage, stormwater runoff, grading, the CC&Rs for the Montair community, and the applicable Municipal Code have been raised and at issue in the case for some time.

The February 26, 2026 stipulation by the parties jointly asked the Court to vacate the May 2026 trial date, and either reset the trial to "no earlier than mid-December 2026" or set a case management/trial setting conference. (2/26/2026 Stip. ¶ 2.) (*See also* Stip. p. 4, l. 26 – p. 5, l. 2 [seeking continuance of trial and related deadlines and stipulating that "no Party would suffer prejudice by the requested continuance," and "the interests of justice are best served by continuing the trial date."].) The Stipulation confirms that even before a determination of this motion, the factual issues were on the parties' radar and part of the discovery and litigation pending and anticipated by the parties; the parties appear to have anticipated the likelihood this motion would be granted. The trial setting conference is scheduled for July 28, 2026, and no trial date is presently

scheduled. Discovery is ongoing. The five-year period from commencement of the case will not run until April 2027, roughly 10 months from the hearing on this motion. (Code Civ. Proc. § 583.310.) The parties already agreed that the trial date could be continued to at least mid-December 2026. (2/26/26 Stip. ¶ 2.) There is insufficient evidence that allowing the proposed FAC, which may mean the trial date is not set until March 2027 rather than mid-December 2026, is prejudicial to the parties.

This case is unlike the cases relied on by opposing parties in which the delay was found to be prejudicial and sufficient to support the denial of the motion. (*See Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488 [affirming denial of leave to amend to add claim after the date the case was originally set to go trial, and which would have required new witnesses and discovery]; *Duchrow v. Forest* (2013) 215 Cal.App.4th 1359, 1377-1380 [denying request for leave to amend complaint made on the fourth day of a five day trial with no explanation for the delay]; *City of Stanton v. Cox* ('989) 207 Cal. App. 3d 1557, 1564 ["A party who waits 18 months before attempting to amend, and then does so only after trial has commenced, and who offers no excuse for the failure, can hardly complain when the request to amend is denied. Under these circumstances, we cannot say the trial judge abused his discretion." (Emphasis added.)]; *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175-176 [denial of request for leave to amend made over five years after suit commenced, and during oral argument on summary judgment motion]; *Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739 [four and a half year delay before seeking leave to amend to add federal claim, a claim that could have been made at the outset of litigation, and plaintiff sought to amend only after trial court indicated intention to grant summary judgment]; *Record v. Reason* (1993) 73 Cal.App.4th 472, 486 [delay of three years].)

E. Myers' Request for Conditions

The Myers list conditions they request at page 14 of their opposition. As to Item 1, the Court will not condition leave to amend on Plaintiffs' pleading compliance with any alternative dispute resolution requirements under the CC&Rs and/or Davis-Stirling Act. The Myers can raise any such deficiency by demurrer, motion to strike or other appropriate challenge if warranted. (Myers Opp. p. 13, ll. 11-17.) As to Items 2 and 3, nothing in this ruling granting leave to amend would preclude any of the defendants from filing a new answer responding to the new pleading, and as set forth above, the Court's ruling on this motion is limited to allowing the FAC to be filed.

As to the remainder of Item 2 regarding setting a discovery schedule, the Court will not address the issue on this motion. The Myers can raise discovery timing at the trial setting conference set for July 28, 2026 if appropriate. As to Item 4 on discovery cost-shifting, though Code of Civil Procedure sections 473(a) and 576 grant the Court authority to impose terms and conditions on allowing leave to amend, the discovery conditions sought by the Myers are too vague and the record too factually inadequate to impose the conditions the Myers request.

Conclusion and Ruling

The Court **grants** Plaintiffs' motion. Plaintiffs are granted leave to file a first amended and supplemental complaint. Leave to amend as granted by this ruling includes leave (a) to make modifications of the proposed FAC to incorporate revisions narrowing paragraph 11 (Myers Opp. p. 11, ll. 13-22), (b) to plead with specificity the post-complaint flooding dates and attach the referenced exhibits (see in particular proposed FAC ¶¶ 1, 37, 39, 81, 83, 101, 113, 117 as noted in Reply p. 7, l. 24

– p. 8, l. 20), (c) to allege facts as to the basis for naming Plaintiffs or the Myers in their capacities as trustees of the respective family trusts, if they deem it necessary or appropriate (see Myers Opp. p. 13, ll. 18-20), and (d) to allege compliance with any pre-litigation alternative dispute resolution requirements that may apply under the CC&Rs and attach a certificate regarding same, if they deem it necessary or appropriate (see Myers Opp. p. 13, ll. 11-17).

Nothing in this ruling is a ruling on the sufficiency or the merits of the claims or allegations of the proposed FAC or the final version of the first amended and supplemental complaint that Plaintiffs file, or determines or limits any defenses parties may raise in response to any first amended and supplemental complaint Plaintiffs file, except as to the procedural ruling that Plaintiffs shall be allowed to amend, supplement and plead omitted cross-claims by filing an amended and supplemental first amended complaint as they request in their motion pursuant to Code of Civil Procedure sections 426.50, 464, 473(a), and 576. (*See generally Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 ["preferable practice" is allowing pleading amendment and allowing "the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings."].)

8. 9:00 AM CASE NUMBER: C23-00888
CASE NAME: ROSE WRONA VS. SAGE VETERINARY CENTERS, LP
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**
FILED BY: ROSE MEQUITTA WRONA and JAMES MAGEE, ETC., ET AL.
TENTATIVE RULING:

Unopposed. Proposed Order will be signed by the Court.

9. 9:00 AM CASE NUMBER: C23-02820
CASE NAME: ILIANA REYES VS. FIRST AMERICA AUTOMOTIVE, INC., A DELAWARE CORPORATION
***HEARING ON MOTION IN RE: HEARING ON THE FINAL APPROVAL OF SETTLEMENT**
FILED BY: ILIANA REYES,, on behalf of herself and all others, etc.
***TENTATIVE RULING:**

Unopposed. Proposed Order will be signed by the Court.

10. 9:00 AM CASE NUMBER: C24-02496
CASE NAME: FEDERICO BOJORQUEZ VS. HERMINIA MARTINEZ
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: MARTINEZ, HERMINIA
TENTATIVE RULING:

Continued by the Court to June 17, 2026.